

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katelyn Williams	Team: Team # 3	CCRB Case #: 200805475	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/08/2008 9:25 AM	Location of Incident: 15th Street & Park Avenue South (14th Street/Union Square Subway Station)	Precinct: 13	18 Mo. SOL 10/8/2009	EO SOL 10/8/2009	
Date/Time CV Reported Wed, 04/16/2008 1:20 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Wed, 04/16/2008 1:20 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Raymond Low	28922	936985	TB DT04

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michaelang Hidalgo	10969	936043	TB DT04
2. POM Pedro Reyes	10634	911553	TB CAN

Officer(s)	Allegation	Investigator Recommendation
A.POM Raymond Low	Discourtesy: PO Raymond Low spoke obscenely towards § 87(2)(b) [REDACTED]	[REDACTED]

Synopsis

At approximately 9:25AM on April 8, 2008, § 87(2)(b) witnessed multiple officers arresting a Black male, identified by the CCRB as § 87(2)(b) at the 15th Street and Park Avenue South entrance to the 14th Street/Union Square subway station in Manhattan. One of the officers, identified by the CCRB as PO Pedro Reyes, had a Department canine with him who was barking at § 87(2)(b). § 87(2)(b) alleged that one of the other officers, identified by the CCRB as PO Raymond Low, told § 87(2)(b) “I fucking told you I was a police officer” (Allegation A).

This case was originally assigned to Investigator Emmanuel Fashakin, Jr., on April 18, 2008. Upon Investigator Fashakin’s departure from the CCRB, the case was reassigned to Investigator Katelyn Williams on November 18, 2008.

§ 87(2)(g)
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Summary of Complaint

§ 87(2)(b) § 87(2)(b) *White female*, § 87(2)(b) § 87(2)(b) filed a complaint with the CCRB via mail on April 16, 2008 on behalf of an unknown victim, identified through the investigation as § 87(2)(b) (Encl. 5A-B). § 87(2)(b) appeared at the CCRB on May 6, 2008 and provided a formal statement (Encl. 7A-D). Her written and formal statements are summarized below.

At approximately 9:25AM on April 8, 2008, § 87(2)(b) was entering the 14th Street/Union Square subway station at 15th Street and Park Avenue South in Manhattan when she observed five officers (four in-uniform, one in plainclothes) surrounding a Black male who was about 6’2” tall and weighed over 160 pounds. § 87(2)(b) stated in her original complaint that § 87(2)(b) was clean-shaven and lacked facial hair. The male, identified by the CCRB as § 87(2)(b) appeared to be restrained. § 87(2)(b) believed he was passive and posed no threat.

One of the uniformed officers, identified by the CCRB as PO Pedro Reyes, was handling a German shepherd that was barking at § 87(2)(b) from about two feet away. § 87(2)(b) did not hear PO Reyes issue the canine any commands, and felt that this gave the canine permission to intimidate § 87(2)(b). The officer in plainclothes, identified by the CCRB as PO Raymond Low, was yelling at § 87(2)(b) and stated, “I fucking told you I was a police officer.” § 87(2)(b) described PO Low as a White male, about 5’9” tall and weighing approximately 150 pounds.

The officers escorted § 87(2)(b) into a police substation. § 87(2)(b) followed the officers but did not interact with any of them. She could see the officers surrounding § 87(2)(b) as he sat passively in a chair, but could not hear what was being said. She could see that the canine continued to bark at § 87(2)(b). A few minutes elapsed and § 87(2)(b) was led away.

In her original letter to the CCRB, § 87(2)(b) indicated that she was filing her complaint against “the use of a Canine Unit by officers to intimidate a (passive) person in custody.” In her description of this incident in her letter, she stated that an officer, identified as PO Low by the CCRB, used “obscenities” towards § 87(2)(b) but she did not indicate what these obscenities were.

Results of Investigation

Attempts to Locate Victim

§ 87(2)(b)

A search of the BADS database revealed that a Black male named § 87(2)(b) was arrested at the time and place of occurrence of this incident. § 87(2)(b) closely matches the physical description provided by § 87(2)(b) for the victim. Two letters were sent to the address listed for § 87(2)(b) on his arrest report between April 21, 2008 and April 24, 2008. Neither letter was returned to the CCRB by the USPS. The number listed for § 87(2)(b) in LexisNexis is not in-service. According to the Department of Correction website, § 87(2)(b) is not currently incarcerated. As of the writing of this report, § 87(2)(b) has not contacted the CCRB.

Officer Statements

PO Michaelangelo Hidalgo

Arrest Report

§ 87(2)(a) 160.50

CCRB Statement (Encl. 9A-B)

PO Michaelangelo Hidalgo was interviewed at the CCRB on May 16, 2008. PO Hidalgo is a Hispanic male with black hair and brown eyes. He is 5'7" and weighs 150 pounds. PO Hidalgo worked from 8:05AM until 4:40PM on April 8, 2008. He was in plainclothes and was working as an anti-crime officer for Transit District 4 with PO Raymond Low. He noted in his memo book (Encl. 8A-B) that at 9:30AM, he was holding a suspect of sexual abuse. He responded to the Transit District 4 stationhouse at 9:40AM.

At approximately 9:30AM on April 8, 2008, PO Hidalgo and PO Low were on a southbound number five train when they observed a Black male, later identified as § 87(2)(b) grab a woman's buttocks as they both exited the train at the Fourteenth Street/Union Square station. PO Hidalgo and PO Low exited the train and approached § 87(2)(b). They identified themselves as police officers and told § 87(2)(b) to wait while PO Hidalgo approached the female. When PO Hidalgo questioned the female, she confirmed that § 87(2)(b) had grabbed her buttocks.

PO Low kept an eye on § 87(2)(b) who was not yet under arrest, while PO Hidalgo spoke with the female. After receiving confirmation that the female had been sexually assaulted by § 87(2)(b) PO Hidalgo and PO Low placed § 87(2)(b) under arrest for sexual abuse. PO Hidalgo stated that the interaction with § 87(2)(b) occurred on the subway platform, and that no additional officers responded to the scene. § 87(2)(b) did not run from the officers, and the officers did not engage in a foot chase. PO Hidalgo stated that there was no canine handler or department canine at the location. PO Hidalgo did not state to § 87(2)(b) "I fucking told you I was a police officer."

PO Raymond Low

CCRB Statement (Encl. 11A-B)

PO Raymond Low was interviewed at the CCRB on June 5, 2008. PO Low is a Hispanic male with black hair and brown eyes. He is 5'6" and weighs 165 pounds. PO Low worked from 8:05AM until 4:40PM on April 8, 2008. He was in plainclothes and was working as an anti-crime officer with Transit District 4. His partner was PO Michaelangelo Hidalgo. PO Low noted in his memo book (Encl. 10A-B) that at 9:30AM, he was holding a suspect.

At approximately 9:15AM on April 8, 2008, PO Low and PO Hidalgo were on a downtown number five train when they observed an individual, a Black male later identified as § 87(2)(b) enter the train and rub his pelvic area against the buttocks of a woman who had already been on the train. The female exited at the next station, Union Square, followed by § 87(2)(b). The officers exited the train behind them, and PO Hidalgo immediately approached the woman to speak with her. § 87(2)(b) observed this and began quickly walking towards the turnstile.

PO Low followed him, and § 87(2)(b) ran through the turnstile. PO Low called out to him to stop, and he turned to face PO Low, who crossed the turnstile to speak with him. PO Low, who had his shield displayed around his neck, identified himself as a police officer. § 87(2)(b) stated that he did not believe PO Low, and that he had to leave. At this point, PO Hidalgo radioed to PO Low that he should place § 87(2)(b) under arrest because the female victim confirmed that § 87(2)(b) had sexually abused her.

PO Low told § 87(2)(b) that he was under arrest and began placing him in handcuffs. § 87(2)(b) pulled his arm away from PO Low and tried to flee up the stairwell, but PO Low grabbed his arm and pulled him back down. Another officer, identified by the CCRB as PO Pedro Reyes, arrived at the location with a Department canine. Upon seeing the officer and the canine, § 87(2)(b) stopped struggling and allowed PO Low to place him in handcuffs.

While being placed in handcuffs, § 87(2)(b) stated that he did not know that PO Low was a police officer. PO Low told him that he had identified himself as a police officer. He denied using any profanity towards § 87(2)(b) and denied stating, “I fucking told you I was a police officer.” To PO Low’s recollection, only PO Reyes stopped to provide assistance. PO Low recalled that other uniformed officers passed by, but did not remain on the scene or assist him in the arrest. § 87(2)(b) was taken into a holding site inside the subway station. PO Hidalgo did not respond to the location where § 87(2)(b) had been placed under arrest.

PO Pedro Reyes

CCRB Statement (Encl. 13A-B)

PO Pedro Reyes was interviewed at the CCRB on February 4, 2009. PO Reyes is a § 87(2)(b)-old Hispanic male with black hair and brown eyes. He is 5’7” and weighs 180lbs. He works for the Transit Bureau Canine Unit. PO Reyes worked from 5:30AM until 2:05PM on April 8, 2008. He was in-uniform and was working a train patrol shift with his department canine, Rudy. He noted in his memo book (Encl. 12A-C) that at 9:40AM, he responded to a call for assistance from officers who were holding a suspect of sexual abuse in the 14th Street/Union Square subway station. The suspect was a Black male between 25 and 30-years-old. PO Reyes and Rudy assisted the officers in detaining the suspect.

PO Reyes did not recall the specific details of the incident. He stated that when he and Rudy arrived at the location, the suspect, identified by the CCRB as § 87(2)(b) was already in handcuffs. He did not recall how many officers were present or who they were. PO Reyes stated that he never spoke with § 87(2)(b) but that Rudy was barking at him. He stated, “That’s the way we’re trained. If an officer is dealing with an alleged perpetrator, or if [the canines] see the cuffs come out, automatically they’re focused on that individual they’re putting the cuffs on. It’s just routine patrol.” PO Reyes did not hear what was said between § 87(2)(b) and the other officers. He never spoke discourteously towards § 87(2)(b) nor did he hear another do so. He did not hear any officer tell § 87(2)(b) “I fucking told you I was a police officer.”

Attempts at Additional Witness Officers

§ 87(2)(b) stated that there were four uniformed officers and one officer in plainclothes present while § 87(2)(b) was being arrested. However, PO Low stated that PO Reyes was the only officer who stopped to provide assistance with § 87(2)(b)’s arrest. He stated that other uniformed officers passed by, but did not remain on the scene or assist him with the arrest. Furthermore, the SPRINT print-out did not indicate that any further officers responded to the location.

NYPD Documents

Roll Calls (Encl. 16A-D, 17A-L)

The second platoon roll call for the transit bureau canine unit on April 8, 2008 confirms that PO Pedro Reyes was working at the time of the incident. He was working on the 4, 5, 6 line in Manhattan. The second platoon roll call for transit district four on August 8, 2008 confirms that PO Low and PO Hidalgo were working together at the time of the incident. They were both working as part of an anti-crime team in the 14th Street/Union Square subway station.

SPRINT Print-Out (Encl. 14A)

The SPRINT print-out for this incident indicates that an anti-crime unit arrested one individual for sexual abuse. It notes that the individual was under control, and no transportation was needed.

§ 87(2)(b)'s Arrest Photo (Encl. 15A)

As he is depicted in his arrest photograph, § 87(2)(b) matches the physical description provided by § 87(2)(b) for the victim in this incident. He was a Black male who was about 6'0" tall and weighed 210 pounds.

Disposition of Arrest Related to Incident (Encl. 18A-E)

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) CCRB History (Encl. 3A)

§ 87(2)(b) § 87(2)(b) was a witness in CCRB § 87(2)(b).

§ 87(2)(b) CCRB History (Encl. 4A)

This is § 87(2)(b)'s first CCRB complaint.

PO Raymond Low CCRB History (Encl. 2A)

PO Low has been a police officer for four years and has no prior CCRB substantiations.

Conclusions and Recommendations

Identification of Subject Officers

§ 87(2)(b) stated that there was only one officer in plainclothes at the incident location. Although she described the officer in plainclothes as a White male, PO Low acknowledged that only he and PO Reyes participated in placing § 87(2)(b) under arrest. He stated that PO Hidalgo, who was also in plainclothes, stayed with the female victim and did not respond to the arrest location. Aside from his race, PO Low closely matches the physical description provided by § 87(2)(b) for the officer who stated, "I fucking told you I was a police officer." In addition, PO Low acknowledged telling § 87(2)(b) that he had identified himself as a police officer. § 87(2)(g)

Undisputed Facts

At approximately 9:25AM on April 8, 2008, PO Raymond Low and PO Michaelangelo Hidalgo arrested § 87(2)(b) in the 14th Street/Union Square subway station after witnessing him sexually abuse a female on a downtown number five train.

Disputed Facts

PO Low denied § 87(2)(b)'s allegation that he told § 87(2)(b) "I fucking told you I was a police officer."

Assessment of Evidence

§ 87(2)(g)
PO Hidalgo stated that there was no canine handler or department canine at the incident location. However, both § 87(2)(b) and PO Low stated that a canine officer was present when § 87(2)(b) was arrested, and PO Reyes himself acknowledged his presence. In addition, PO Hidalgo stated that both he and PO Low placed § 87(2)(b) under arrest on the subway platform, and that § 87(2)(b) did not attempt to run. PO Low stated, however, that he had to follow § 87(2)(b) through the turnstile, and that § 87(2)(b) attempted to run up the stairs after PO Low told him he was being placed under arrest. PO Low further stated that PO Hidalgo stayed with the female victim and did not respond to the location of § 87(2)(b)'s arrest, and § 87(2)(b) confirmed that there was only one officer in plainclothes surrounding § 87(2)(b).

PO Low stated that while § 87(2)(b) was being placed in handcuffs, he told PO Low that he did not know he was a police officer when he ran. PO Low acknowledged telling § 87(2)(b) that he had identified himself as a police officer, but he denied using any discourteous language while doing so. More specifically, he denied telling § 87(2)(b) "I fucking told you I was a police officer." PO Reyes stated that he did not hear any officer use such language towards § 87(2)(b) but he acknowledged that § 87(2)(b) was already handcuffed when he arrived, and therefore he did not hear everything that was said between § 87(2)(b) and PO Low. § 87(2)(b) was not available to attest to whether or not PO Low made this statement.

§ 87(2)(b), § 87(2)(g)

However, it is undisputed § 87(2)(b) did not witness the whole of the incident. She did not convey knowledge of why § 87(2)(b) was being placed under arrest, nor did she see the manner in which he came to be in police custody. By the time she happened upon the situation, § 87(2)(b) was already in custody and appeared to be passive. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) indicated that the emphasis of her complaint was the use of a patrol canine to intimidate a passive individual in-custody. § 87(2)(b), § 87(2)(g)

§ 87(2)(g)

According to the Patrol Guide, an officer is tactically authorized to use a patrol canine to assist in effecting an arrest or preventing the escape of a person who an officer has probable cause to believe committed a felony (P.G. 212-93, Encl. 1A). § 87(2)(g)

Allegation A- Discourtesy: Police Officer Raymond Low spoke obscenely towards § 87(2)(b)

§ 87(2)(g), § 87(2)(b)

As noted in *PD v. Woods*, previous OATH cases have determined that “the use of profanity in intense street enforcement situations is not a disciplinary offense” (1B-F). § 87(2)(g), § 87(2)(b)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: